

ONLINE TENDER FOR ENTERING INTO
RATE AGREEMENT FOR TWO YEAR (2019-21)
REQUIREMENT FOR PROCUREMENT OF
ARV (ANTI RETROVIRAL) DRUGS

Tender No: CMSS/PROC/ 2019-21/NACP/010

CENTRAL MEDICAL SERVICES SOCIETY

Ministry of Health & Family Welfare (Government of India)
2nd floor, VishwaYuvak Kendra, Pt. Uma Shankar Dikshit Marg, Teen Murti
Road, Opposite Police Station Chankaya Puri, New Delhi-110021
Telephones: 011-214109010, 21410906
Email: - cmss.procurement@gmail.com, agmsakshi.cmss@gmail.com

This page is intentionally left blank

CENTRAL MEDICAL SERVICES SOCIETY

Ministry of Health & Family Welfare (Government of India)
2nd floor, VishwaYuvak Kendra, Pt. Uma Shankar Dikshit Marg, Teen Murti
Road, Opposite Police Station Chankaya Puri, New Delhi-110021
Telephones: 011-214109010, 21410906

Telephones: 011-21410906

Fax: 011-23730120

Email: cmss.procurement@gmail.com

agmsakshi.cmss@gmail.com

ONLINE TENDER FOR THE SUPPLY OF ARV DRUGS FOR THE YEAR (2019-21) (Manual bids shall not be accepted)

BID DOCUMENTS MAY BE DOWNLOADED FROM CPPP WEBSITE:
<https://eprocure.gov.in/eprocure/app> AS PER THE SCHEDULE AS GIVEN IN CRITICAL DATE
SHEET AS UNDER:

CRITICAL DATE SHEET

Published Date and Time	10.05.2019 (12.00 Noon)
Bid Document Download Start Date And Time	10.05.2019 (12.30 PM)
Pre Bid Meeting	16.05.2019 (11.00 AM)
Bid Submission Start Date and Time	23.05.2019 (09.00 AM)
Bid Document Download End Date & Time	31.05.2019 (01.00 PM)
Bid Submission End Date and Time	31.05.2019 (03.00 PM)
Last date of submission of original documents	3.06.2019 (03.00 PM)
Bid Opening Date and Time	4.06.2019 (03.00 PM)

Bids shall be submitted online only at CPPP website: <https://eprocure.gov.in/eprocure/app>.
Bidder/Contractor is advised to follow the instructions provided in the 'Instructions to the
Contractors/Bidder for the e-submission of the bids online through the Central Public
Procurement Portal for e Procurement at <https://eprocure.gov.in/eprocure/app>'.

Bid documents may be scanned with 100 dpi with black and white option which helps in
reducing size of the scanned document. Not more than one bid shall be submitted by one
contractor or contractors having business relationship.

Address for Communication : Central Medical Services Society,
2nd floor, VishwaYuvak Kendra,

Pt. Uma Shankar Dikshit Marg,
Teen Murti Road, Opposite Police
Station Chankaya Puri, New Delhi-110021

This page is intentionally left blank

CONTENTS

Sl. No.	Descriptions	Page No.
1.	Last Date for Receipt of Tender	9
2.	Bid Validity	10
3.	Pre-Bid Meeting /Clarification	10
4.	Eligibility Criteria	11
5.	General Conditions	12
6.	Technical Bid – Packet 1	16
7.	Price Bid – Packet 2	19
8.	Opening of “Packet1” i.e. Technical Bid and Packet 2” i.e. financial Bid of Tender	20
9.	Earnest Money Deposit	21
10.	Other Conditions	24
11.	Acceptance of Bid	26
12.	Security Deposit and Agreement	27
13.	Methodology for Placing Order	28
14.	Supply/Delivery Conditions	30
15.	Packing	33
16.	Quality Control	34
17.	Payment Provisions	36
18.	Liquidated Damages and other Penalties	37
19.	Warranty	39
20.	Deduction and other Penalties on account of Delays /Default/ Termination / Part Cancellation /short closure	39
21.	Fall Clause	41
22.	Saving Clause	41
23.	Prohibition of Influencing CMSS by the Bidder	42
24.	Resolution of Disputes	42
25.	Jurisdiction	43

This page is intentionally left blank

LIST OF ANNEXURES

S. No.	Description	PageNo.
1.	Annex-I (Schedule of Requirement & Technical Specifications)	45
2.	Annex-II (Format of Forwarding Letter)	49
3.	Annex-III (Details of EMD Submitted)	51
4.	Annex-IV (Proforma for Performance Statement)	52
5.	Annex-V (Annual Turnover Statement)	53
6.	Annex-VI (List of items Quoted & Their Production Capacity)	55
7.	Annex-VII (Check List)	57-58
8.	Annex-VIII (Notarized Undertaking by MSEs for EMD Exemption)	59
9.	Annex-IX (Acceptance Letter Format)	61
10.	Annex-X (Terms of Agreement)	65-67
11.	Annex-XI (Purchase Order Format)	71-72
12.	Annex-XII (Mandate Form for RTGS)	77-78
13.	Annex-XIII (The Price Bid)	79
14.	Annex- XIV (Bank Guarantee Format for EMD)	81
15.	Annex- XV (Security Bank Guarantee Format)	82
16.	Annex- XVI (Instruction for Online Bids Submission)	84-87
17.	Annex – XVII (No Deviation Certificate)	88
18.	Annex- XVIII (Near Relative Format)	91

This page is intentionally left blank

ONLINE TENDER FOR THE SUPPLY OF ARV DRUGS FOR THE YEAR 2019-21

The CMSS, an autonomous Society of Ministry of Health & Family Welfare (Govt. of India), is responsible for procuring quality drugs, vaccines, contraceptives, medical devices, diagnostic kits and other health sector goods.

Tender Inviting Authority: DG&CEO, Central Medical Services Society, Ministry of Health & Family Welfare (Government of India) 2nd floor, VishwaYuvak Kendra, Pt. Uma Shankar Dikshit Marg, Teen Murti Road, Opposite Police Station Chankaya Puri, New Delhi-110021 (hereinafter referred as Tender Inviting Authority unless the context otherwise requires)

Tender Accepting Authority: Governing Body, Central Medical Services Society (hereinafter referred as **CMSS**, unless the context otherwise requires)

Tender Inviting Authority invites tender through online bid submission at CPPP website: <https://eprocure.gov.in/eprocure/app> for supply of Drugs to Central Medical Services Society for the year **2019-21**.

The list of items to be quoted and their specifications are given in Annexure-I and the amount of EMD to be submitted is given in Annexure –III, Bidder may quote for any schedules or any combination of schedules or all schedules and the EMD may be submitted accordingly as specified in Annexure –III.

1. LAST DATE FOR RECEIPT OF TENDER

Online Tenders (in two separate packets {Technical bid “Packet 1” and Price Bid “Packet 2”}) will be submitted online at CPPP website: <https://eprocure.gov.in/eprocure/app> as per critical date sheet. The list of Drugs along with their Technical Specifications are attached here as **Annexure-I**.

2. BID VALIDITY:

- i) The bid shall be valid for a period of 150 days from the date of opening of Packet 1 (Technical Bid).
- ii) In exceptional circumstances, the purchaser may request the consent of the bidder for an extension to the period of bid validity. The request and the responses thereto shall be made in writing. The bid security provided under clause 9 shall also be suitably extended. A bidder may refuse the request without forfeiting his bid security. A bidder accepting the request and granting extension will not be permitted to modify his bid.

3. PRE BID MEETING/CLARIFICATIONS:

- i) A prospective bidder, requiring any clarification of the bid documents may notify the purchaser in writing or email at the purchaser's mailing address indicated in the Invitation of bid. The purchaser shall respond in writing (to be uploaded on CPPP and on e-procurement website) to any request for clarification of bid documents, which it receives not later than date mentioned in critical date sheet and prior to the pre-bid meeting.
- ii) The Tenderers or their Official Representatives are invited to attend a pre-bid meeting which will take place as specified in critical date sheet.
- iii) Any clarification issued by CMSS in response to query raised by prospective bidders shall form an integral part of bid documents and it may amount to an amendment of the relevant clauses of the bid documents.
- iv) The clarification if any will be uploaded at CPPP and on e-procurement website and bidder is expected to see the CMSS website for clarification before submitting the bid.

4. ELIGIBILITY CRITERIA

- (a) Tenderer shall be a manufacturer of ARV Drugs (TABS/CAPS) having valid own manufacturing license and Certificate of Pharmaceutical Product (COPP) as recommended by WHO for the product offered as per specification given in the tender. The manufacturing license & COPP should be valid on the date of tender opening packet 1.
- (b) For all regulated products, the bidder should have at least two years of manufacturing and marketing experience of the particular items as a manufacturer for each regulated product quoted in the tender. However, this would not apply to regulated products which have been licensed by DCG (I) less than two years ago. DCG (I) permission shall be required for all new regulated products to this effect.
- (c) Average Annual turnover for Tenderers in the last two years i.e. 2016-17 and 2017-18 shall not be less than Rs. 10 crore and turnover for the year 2017-18 should also be not less than 10 crore. The turnover benchmark will not apply to Micro and Small Enterprises (MSE).
- (d) Tender should not be submitted by the firm/company for the Product(s) for which the firm/ Company has been blacklisted/ banned/ debarred by CMSS/ State Governments/ Central Government/ its Drug procurement agencies or if the Firm/Company is debarred as a whole by these agencies.
- (e) Tenderer should quote at least for 50% of the tender quantity of each item quoted and the Tenderer shall have an annual production capacity not less than one and half times the quantity quoted for each schedule.

- (f) Tenderer should have supplied 50% of quoted or similar Anti TB Drugs quantity during the last 3 financial years (Copies of to be submitted).

5. GENERAL CONDITIONS

- (i) A complete set of tender document may be downloaded by any interested eligible bidder from website: <https://eprocure.gov.in/eprocure/app> as per the schedule given in Critical Date Sheet. No cost for the Tender document shall be charged for the Tender documents downloaded by the Tenderers.
- (ii) All tenders must be accompanied with Earnest Money Deposit as specified against each schedule in **Annexure-III** of the Tender document.
- (iii) Tenders will be opened online therefore, the presence of tenderers/authorized representatives of the Tenderers is not necessary.
- (iv) All notices or communications relating to and arising out of this tender and any consequent agreement or any of the terms thereof shall be considered duly served on or given to the Tenderer if delivered to it or left at the premises, places of business or abode or sent at official email as provided by the tenderer.
- (v) Bidders are advised to watch for amendments, if any, which may be issued prior date of submission of bids by tender inviting authority on the website: www.cmss.gov.in and <https://eprocure.gov.in/eprocure/app> for which CMSS will not issue any separate communication to individual bidders.
- (vi) **FORGERY/FRAUD BY BIDDERS/SUPPLIER :**
 - (a) Genuineness of the papers/documents/certificates/declaration submitted with bid is the responsibility of the bidder. If at any stage it is found that the papers/ documents/certificates/declaration submitted by the bidder are not in order, are forged, manipulated, fabricated or altered, the bid or purchase order issued to the bidder is liable to be

cancelled and further necessary action including forfeiture of its EMD/Security Deposit, debarring/blacklisting against the bidder will be taken. Purchaser may also initiate police/legal action and request concerned statutory authority for cancellation of license issued to supplier for tendered items.

- (b) If any fraud, short supply of goods is detected on part of the bidder at any stage, the bid or work order/ Purchase order issued to the bidder is liable to be cancelled and further necessary action against the bidder including debarring/blacklisting will be taken.
- (c) In any of above two cases, the CMSS is at liberty to make alternative purchase of the tendered items from other approved suppliers or in the open market or from any other Tenderer who might have quoted higher rates, at the risk and the cost of the supplier.

(vii) PATENT RIGHTS:

The supplier shall indemnify the purchaser against all third-party claims of infringement of patent, trademark or industrial design rights arising from use of the goods or any part thereof.

In event of any such claim in respect of alleged breach of patent, registered designs, trademarks etc. being made against TIA, the TIA shall notify the supplier of the same and the supplier shall at its own expenses take care of the same for settlement without any liability to the TIA.

(viii) TERMINATION FOR DEFAULT:

1. The purchaser may, without prejudice to any other remedy for breach of contract, by written notice of default, sent to the supplier, terminate this contract in whole or in part.

- (a) If the supplier fails to deliver any or all of the goods within the time period(s) specified in the contract, or any extension thereof granted by the purchaser.
 - (b) If the supplier fails to perform any other obligation(s) under the contract, and
 - (c) If the supplier, in either of the above circumstances, does not remedy his failure within a period of 15 days (or such longer period as the purchaser may authorize in writing) after receipt of the default notice from the purchaser.
- 2. In the event the purchaser terminates the contract in whole or in part, pursuant to above the purchaser may procure; upon such terms and in such manner, as it deems appropriate, tendered goods undelivered and the supplier shall be liable to the purchaser for any excess cost for such similar goods. However, the supplier shall continue performance of the contract to the extent not terminated.
- (ix) **TERMINATION FOR INSOLVENCY:**

The purchaser may, at any time, terminate the contract by giving written notice to the supplier, without compensation to the supplier, if the supplier becomes bankrupt or otherwise insolvent, as declared by the competent court provided that such, termination will not prejudice or affect any right of action or remedy which has accrued or will accruethereafter to the purchaser.
- (x) **SET OFF:**

Any sum of money due and payable to the supplier (including security deposit refundable to him) under this contract may be appropriated by the purchaser and set off the same against any claim of the purchaser

for payment of a sum of money arising out of this contract or under any other contract made by the supplier with the Purchaser.

- (xi) Purchaser reserves the right to debar/ blacklist a bidder for a suitable period in case he fails to honour his bid/contract without sufficient grounds.

(xii) BID SUBMISSION:

- (a) Bidders are hereby cautioned that any attempt of cartel formation will be viewed seriously and may at the discretion of purchaser, lead to cancellation of tender. Purchaser in its discretion may decide to forfeit EMD of such bidders and black list or debar these bidders for suitable period besides taking other punitive measures. Decision of purchaser in this regard shall be final and binding.
- (b) (i) Different firms or companies having any common partner(s) or Director(s) are not permitted to quote for more than one tender offer. In case more than one offer is received from such bidders, then all such offers except with the lowest quote shall be rejected summarily.
- (ii) In case more than one offer for any tendered item is received from the same bidder, then all such offers except with the lowest quote shall be rejected summarily.

(xiii) NEAR RELATIVE CERTIFICATE:

The bidder should give a certificate that none of his/her near relative as defined below is working in CMSS where he is going to apply for the tender. In case of Proprietorship firm certificate will be given by the proprietor. For partnership firm certificate will be given by all the partners and in case of limited company by all the Directors of the company

excluding Govt. of India/Financial Institutions nominees and independent non-official part time directors appointed by Govt. of India or the Governor of the state. Authorised signatory of bid may also sign this bid on behalf of the entire directors/ partners/ proprietor. Due to any breach of conditions by the company or firm or any other person the tender will be cancelled and bid security will be forfeited at any stage whenever it is noticed and CMSS will not pay any damage to the company or firm or the concerned person. The company or firm or the person will also be debarred for further participation for quoted item in the concerned unit.

The near relatives for this purpose are defined as:

- (a) Members of a Hindu undivided family.
- (b) They are husband and wife.
- (c) The one is related to the other in the manner as father, mother, son(s) & son's wife (Daughter in law), daughter(s) and daughter's husband (son in law), brothers(s) and brother's wife, sister(s) and sister's husband (brother in law).

An undertaking as specified in Annexure XIII to be submitted.

6. TECHNICAL BID – “PACKET1”

Those indenting to participate in the tender (herein called Tenderer) should first ensure that they fulfil all the eligibility criteria:

- 6.1 The Tenderer should electronically submit the soft copies of following documents in Technical Bid “Packet 1”. (All the documents submitted should bear signature and stamp of the Tenderer).
 - (a) RTGS/NEFT e-receipt or Bank Guarantee (if applicable) in respect of EMD as per Clause 5 (ii) and Clause 9 of this tender document or in case of MSE, a copy of their valid registration certificate in support of their being an MSE and a notarised undertaking given in Annexure VIII.
 - (b) Tender Forwarding letter as per Annexure-II.

- (c) The Tenderer should furnish the Manufacturing License valid on tender opening for each and every product quoted in tender. The license must have been duly renewed up to date and the items quoted shall be clearly highlighted in the license. Original documents should be produced for verification when demanded. If the tendered drug is in Indian Pharmacopoeia (IP), then the manufacturing license has to be submitted in IP only.
- (d) Duly notarized general power of Attorney (on non judicial stamp paper of worth Rs. 50/-) in favour of authorized signatory, in case of partnership firm (to be signed by all partners) / proprietorship firm or board resolution in case of a company to sign the bid and bind the bidder. The signature of authorized signatory should be duly attested. In case of proprietorship on its letter head of firm declares himself as proprietor with specimen signature.
- (e) Market Standing Certificate issued by the Licensing Authority as a Manufacturer for each drug quoted for the last 2 years i.e. 2016-17 and 2017-18.
- (f) Capacity certificate issued by the licensing authority.
- (h) Non-Conviction Certificate issued by the FDA/ Drugs Controller of the State certifying that the firm/company has not been convicted and the products quoted have not been cancelled during last two years i.e. 2016-17 and 2017-18.
- (i) A valid Certificate of Pharmaceutical Product (COPP) as recommended by WHO and a valid WHO/GMP as applicable in current tender for the product offered.
- (j) Annual turnover statement for 2 years i.e., 2016-2017 and 2017-18 should be furnished in the format given in **Annexure-V** duly certified by the Chartered Accountant.
- (k) Copies of the audited Annual reports including the Balance Sheet and Profit and Loss Account along with all the annexure for the last two years i.e. 2016- 17 and 2017-18. duly certified by a practicing Chartered Accountant.

- (l) List of items quoted (the name and Item Code of the items quoted) and relevant pharmacopoeia annual production for the last 2 years as per the **Annexure-VI**.
 - (m) Long Term (Real Time) Stability Data of the quoted product in specified packing for at least for 3 batches, to support shelf life.
 - (n) A Checklist (**Annexure-VII**) indicating the documents submitted with the tender document and their respective page numbers shall be enclosed with the tender document. The documents should be serially arranged.
 - (o) Each page of submitted bid (along with tender document) be properly page numbered and shall be signed by the authorized signatory of the Tenderer with office seal.
 - (p) All the documents enclosed with the tender document should also be signed by the authorized signatory of the Tenderer.
 - (q) No Deviation Certificate as per **Annexure-XVII**.
 - (r) Near Relative Certificate as per **Annexure-XVIII**.
- 6.2 (a) The above mentioned documents are to be submitted in soft copy electronically on the CPPP portal <https://eprocure.gov.in/eprocure/app> as Technical Bid "Packet 1" as per date prescribed in critical date sheet and as per instructions of online bid submission given in **Annexure-XVI**.
- (b) Original Bank Guarantee in physical form is to be deposited with the Tender Inviting Authority as per date prescribed in the critical date sheet. If the last date of deposit of original Bank Guarantee happens to be a central government holiday for offices located in New Delhi, next working day shall be treated as the last date of deposit. The original Bank Guarantee may be either deposited in person or by courier. If sent by courier, the tenderer has to send it in advance so as to make sure that the original Bank Guarantee is delivered to the Tender Inviting Authority by the date specified in critical date sheet. Failure to deposit

the original Bank Guarantee by the specified last date shall result in rejection of bid summarily.

7. PRICE BID-“Packet 2”

7.1 “Packet 2” is for the Price Bid of the Tenderer.

- i) Bid should be uploaded online in the form of BOQ.XXXX.xls.
- ii) Format of the Schedules of price bid is available in **Annexure-XIII**.
- iii) The supplier shall quote as per price schedule given in **Annexure-XIII** for all the items quoted by him schedule of requirement.
- iv) The price quoted shall be the landed price per unit at the specified locations on DDP basis and shall include all taxes and duties including transportation and other incidental expenditure for delivery at CMSS warehouses.
- v) The rate quoted in Price Schedule **Annexure-XIII** should be for a unit as given in specifications as detailed in the tender document. The bidder is not permitted to change / alter specification or unit size in the box or the rates quoted in original bid.

7.2 GST (Goods and Service Tax)/other statutory Taxes/Levies

- i) The bidder may quote for GST as per applicability in accordance with relevant Government notification.
- ii) Any variation upwards/downwards as a result of statutory variation in GST/ other taxes/duties/levies for supplies during original *specified delivery schedule* of goods shall be allowed.
- iii) Any upward/downward revision (only during scheduled delivery period) in statutory taxes, levies will be allowed and benefit will pass on to supplier/purchaser.
- iv) Any increase in taxes and other statutory duties/levies after the expiry of the delivery date shall be to the supplier's accounts. However, the

benefit of any decrease in these taxes/duties shall be passed on to the purchaser by the supplier.

- 7.3 The basic unit price quoted by the bidder shall remain fixed during the entire period of contract and shall not be subject to variation on any account. A bid submitted with an adjustable price quotation will be treated as non-responsive and rejected.

8. OPENING OF “PACKET 1” i.e. ‘TECHNICAL BID AND “PACKET 2” i.e. FINANCIAL BID’ OFFENDER

CLARIFICATION OF BIDS SUBMITTED:

- 8.1 To assist in the examination, evaluation and comparison of bids, the purchaser may, at his discretion ask the bidder for the clarification in its bid. The request for the clarification and response shall be in writing. However, no post bid clarification at the initiative of the bidder shall be entertained.
- 8.2 Presence of authorized official of the Tenderer is not necessary at the time of opening of Technical Bid - “Packet 1” as opening is online.
- 8.3 The purchaser shall evaluate the bids to determine whether they are complete, whether any computational errors have been made, whether required sureties have been furnished, whether the documents have been properly signed and whether the bids are generally in order.
- 8.4 Prior to the detailed evaluation, pursuant to clause above, the purchaser will determine the substantial responsiveness of each bid to the bid documents for purposes of these clauses. A substantially responsive bid is one, which confirms to all the terms and conditions of the bid documents without material deviations. The purchaser's determination of bid's responsiveness shall be based on the contents of the bid itself without recourse to extrinsic evidence.
- 8.5 A bid determined as substantially non-responsive will be rejected by the purchaser and shall not subsequent to the bid opening be made responsive by the bidder by correction of the non-conformity.

- 8.6 The purchaser may waive any minor infirmity or non-conformity or irregularity in a bid, which does not constitute a material deviation, provided such waiver does not prejudice or affect the relative ranking of any bidder. Such minor infirmity will be identified by the TEC and clarification in this regard may be called for.
- 8.7 "Packet 2" will be opened only for tenderers, who are found **techno-commercially** eligible on satisfying the criteria for technical evaluation and plant inspection **(wherever necessary)** based on the documents submitted in "Packet 1". Presence of authorized official of Tenderers is not necessary in opening of "Packet 2" as opening is online.
- 8.8 Arithmetical errors shall be rectified on the following basis. If there is a discrepancy between the unit price and total price that is obtained multiplying the unit price and quantity, the unit price shall prevail and total price shall be corrected by the purchaser. If there is a discrepancy between words and figures, the amount in words shall prevail.

9. EARNEST MONEY DEPOSIT

- 9.1. (a) The Earnest Money Deposit (EMD) is payable by all Tenderers, for an amount indicated in **Annexure-III** UNLESS EXEMPTED under clause 9.2 In case a Tenderer is quoting for more than one item, the Earnest Money Deposit payable by such Tenderer shall be the aggregate total of the Earnest Money Deposit for all the items quoted by such Tenderer. The Tenderers are required to furnish the breakup of the Earnest Money Deposit for the items quoted in the format as per **Annexure-III**. The Earnest Money Deposit shall be paid by Account Payee Demand Draft, FD receipt, Banker's cheque or Bank Guarantee or RTGS/NEFT in the following Bank Account:

BeneficiaryName : Central Medical Services Society
A/CNo. : 32719062216
BankName : SBI Bank
Branch : Nirman Bhawan, Maulana Azad
Road, New Delhi

IFSCCode :SBIN00001083

- b. The Bank Guarantee can also be accepted as a mode of payment and the named beneficiary shall be Central Medical Services Society. The Bank guarantee shall be issued by a bank (Nationalized or Scheduled Bank) in India to make it enforceable and acceptable to the purchaser. The Bank Guarantee shall be in the format as per **Annex-XIV** provided in the tenderdocument.

Bank Guarantee shall remain valid for 45 days beyond the validity period for the bid and will be extended accordingly beyond any extension subsequently requested by purchaser.

- c. The applicable EMD amount has been indicated in **Annexure-III** and is for 100% & 50% quantity of the schedule. If quoted quantity is anywhere between **50%** to **100%** of the quantity of schedule, the applicable EMD may be calculated by the tenderer by proportionately reducing the amount applicable to 100% quantity.

9.2 EXEMPTION FROM PAYMENT OF EARNEST MONEY DEPOSIT TO MSME (MICRO SMALL & MEDIUM ENTERPRISES)

- (i) MSE firms as per classification given in MSME Act 2006 and holding Permanent Registration Certificate from the District Industries Centers or Khadi and Village Industries Commission or Khadi and Village Industries Board or Coir Board or National Small Industries Corporation or any other body specified by Ministry of Micro Small and Medium Enterprises will be granted exemption from payment of Earnest Money Deposit in respect of items for which the Registration Certificate has to be produced.
- (ii) The MSE Units will be required to furnish a notarized undertaking (as per **Annexure-VIII**) to the effect that in the event of non fulfillment or non observance of any of

the conditions stipulated in the contract, the MSE Unit shall pay a penalty, equivalent to the Earnest Money Deposit to offset the loss incurred by the Tender Inviting Authority consequent on such breach of any bid condition.

- (iii) The MSEs participating in the tender shall enclose with their tender a copy of their valid registration certificate with District Industries Centers or Khadi and Village Industries Commission or Khadi and Village Industries Board or Coir Board or National Small Industries Corporation or any other body specified by Ministry of Micro Small and Medium Enterprises in support of their being an MSE, failing which their tender will be liable to be ignored/rejected.

9.3

- (i) Offers of the firms submitted without EMD / for a shorter period/lesser amount as demanded will summarily rejected.
- (ii) The Earnest Money Deposit will be refunded to the lowest responsive bidder/s within 30 days from the date of signing the contract agreement and on the deposit of SecurityDeposit.
- (iii) The Earnest Money Deposit (EMD) furnished by all unsuccessful tenderers will be returned as early as possible after the expiration of the period of tender validity but not later than 30 days of the award of the contract.

9.4 **FORFEITURE OF EMD:**

- (i) The Earnest Money Deposit (EMD) will be forfeited, if the Tenderer withdraws or amends, impairs or derogates from the tender in any respect within the period of validity of his tender.

- (ii) The Earnest Money Deposit (EMD) will be forfeited, in case of the lowest/ matched bidder, fails to execute the contract agreement and / or deposit the Security Deposit within the stipulated time.
- (iii) In both the above cases, the bidder will not be eligible to participate in the tender for same item for one year from the date of issue of letter of acceptance (LOA). The bidder will not approach the court against the decision of the CMSS in this regard.

10. **OTHER CONDITIONS:**

10.1 The details of the annual required quantity of **items** are shown in **Annexure-I**

- (i) Central Medical Services Society (CMSS) will have the right to increase or decrease up to 25% of the quantity of goods and/or services specified in the schedule of requirements without any change in the unit price or other terms and conditions at the time of award of contract.
- (ii) In exceptional situation where the requirement is of an emergent nature and it is necessary to ensure continued supplies from the existing vendors, the purchaser reserves the right to place repeat order up to 50% of the quantity of the goods and/or services contained in the running tender/contract up to a period of twelve months from the earliest date of acceptance of letter of acceptance (LOA) at the same rate or a rate negotiated (downwardly) with the existing vendors considering the reasonability of rates based on prevailing market conditions and the impact of reduction in duties and taxes etc.

- 10.2 (i) The rates quoted and accepted will be binding on the Tenderer for the full contract period of one year and any increase in the price will not be entertained till the completion of this contract period.

- (ii) Any upward/downward revision (only during scheduled delivery period) in statutory taxes, levies will be allowed and benefit will pass on to supplier/purchaser.
 - (iii) Any increase in taxes and other statutory duties/levies after the expiry of the delivery date shall be to the supplier's accounts. However, the benefit of any decrease in these taxes/duties shall be passed on to the purchaser by the supplier.
- 10.3 In exercising of the powers conferred in Section 11 of the Micro, Small and Medium Enterprises Development (MSMED) Act 2006, the Government has notified a new Public Procurement Policy for Micro & Small Enterprises effective from 9th November 2018. The policy mandates that 25% of procurement of annual requirement of goods and services by all Central Ministries / Public Sector Undertakings will be from the Micro and Small Enterprises. Government has also earmarked a sub target of 4% procurement of goods & services out of 25% from MSEs owned by SC/ST entrepreneurs and 3% to micro and small enterprises owned by women.
- 10.4 In accordance to the above notification the participating Micro and Small Enterprises (MSEs) in a tender, quoting price within the band of L1 + 15% would be allowed to supply a portion of the requirement by bringing down their price to the L 1 price, in a situation where L 1 price is from someone other than an MSE. Such MSEs would be allowed to supply up to 20% of the total tendered value. In case there are more than one such eligible MSE, the 20% supply will be shared equally. Out of 20% of the quantity earmarked for supply from MSEs, 4% quantity is earmarked for procurement from MSEs owned by SC/ST entrepreneurs. However, in the event of failure of such MSEs to participate in the tender process or meet the tender requirements

and the L1 price, the 4% quantity earmarked for MSEs owned by SC/ST entrepreneurs will be met from other participating SMEs.

10.5 The DIPP has notified a Public Procurement order -2017 (Preference to Make in India) order 2017 vide order no. P-45021/2/2017-B.E.-I dated 15th June 2017. The provision of said order including any subsequent orders issued from time to time will apply in the instant case.

11. ACCEPTANCE OF TENDER

- 11.1 Technically responsive tenders will be evaluated based only on the "landed price" (all-inclusive price), i.e. Rate per Unit inclusive of all taxes, duties, transportation & other charges as given in **Annexure-XIII** by the tenderer.
- 11.2 The evaluation for ranking shall be carried out on the basis of "all inclusive" prices of the goods offered for each schedule separately.
- 11.3 The purchaser reserves the right to accept or reject any bid, and to annul the bidding process and reject all bids, at any time prior to award of contract without assigning any reason whatsoever and without thereby incurring any liability to the affected bidder or bidders on the grounds of purchaser's action.
- 11.4 (i) CMSS or its authorized representative(s) has the right to inspect the factories of Tenderers, before accepting the rate quoted by them or before releasing any purchase order(s) or at any point of time during the continuance of tender and also has the right to reject the tender or terminate/ cancel the purchase orders issued and/or not to place further order, based on adverse reports brought out during such inspections. In such situation CMSS reserves the right to take

other actions against the tenderer including forfeit of security deposit, debarring/blacklisting for appropriate period.

- (ii) The Tenderer shall allow inspection of the factory at any time by a team of Experts/ Officials nominated by the Tender Inviting Authority for the purpose. The Tenderer shall extend necessary cooperation to such team in inspection of the manufacturing process, quality control measures adopted etc., in the manufacture of the items quoted. If Company/ Firm does not allow for any such inspection, their tenders will be rejected during the currency of the contract.

- 11.5 The acceptance of the tenders will be communicated to the lowest / matched tenderers in writing (through email), as per format of the Letter of Acceptance given in **Annexure- IX**.

12. SECURITY DEPOSIT AND AGREEMENT

12.1 Security Deposit:

On being intimated about the acceptance of the tender the L1/Matched tenderer shall pay a Security Deposit at the rate of 5% of the total value of goods to be awarded. The Security Deposit amount to be deposited in the form of Account Payee Demand Draft, FD receipt, Bank Guarantee or NEFT/RTGS in favor of Central Medical Service Society. The Security Deposit in any other form like Cash/ Cheque/ Postal-Order will not be accepted. In case of depositing security deposit by Bank Guarantee, the named beneficiary shall be Central Medical Services Society. The Bank Guarantee shall be issued by a bank (Nationalized or Scheduled Bank) **in** India to make it enforceable and acceptable to the purchaser. The Bank Guarantee shall be in the format as per **Annexure- XIV** provided in the tender document.

- 12.2 The Performance Bank Guarantee shall be valid for 1230 days from the date of commencement.

LOA Submission	-	15 days
Rate Valid	-	365 days
Delivery period	-	60 days
Shelf life	-	365 x 3 days
B.G. Extension	-	<u>60days</u> <u>1595 days</u>

- 12.3 The lowest/matched tenderer shall execute an Agreement on a non-judicial stamp paper of value of Rs.100/- (stamp duty to be paid by the Tenderer) within 15 days from the date of the intimation from CMSS informing that his tender has been accepted. The Specimen form of Agreement is available in **Annexure-X**.

- 12.4 The proceeds of the performance security shall be payable to the purchaser as compensation for any loss resulting from the supplier's failure to complete its obligations under the contract.

- 12.5 The performance security bond will be discharged by the purchaser after completion of the supplier's performance obligations including any warranty obligations under the contract.

- 12.6 Failure to deposit the performance security will attract clause 9.4.

13. METHODOLOGY FOR PLACING ORDERS

For placing orders the following procedures will be adopted:

- a. After the Price Bid opening (Packet 2), the lowest offer will be declared as the L1 tenderer. CMSS reserves right to negotiate prices with L1 bidder in justified cases.

- b. The Tenderer, who has been declared as Lowest Tenderer for certain item(s), shall within the tender issue of LOA (letter of acceptance) execute necessary Agreement for the supply of the allocated quantity of such drugs as specified in the Tender Document after depositing the required amount as Security Deposit and on execution of the agreement such Tenderer shall supply goods on receipt of Purchase Orders. The format of LOA, agreement, Purchase Order is attached at **Annexure – IX, X, XI** respectively. Generally speaking the draft art work should be given in technical specifications however, in those cases where draft artwork not given in tender specifications, the vendor must need to coordinate with respective programme division of ministry to freeze (get approval) for the art work. No extension would be given on this pretext.
- c. If two or more than two Tenderers are declared as lowest suppliers for the same item(s) (i.e. emerge-L1), such Tenderers shall execute necessary agreement as specified in the Tender Document on depositing the required amount as Security Deposit and on execution of the agreement such Tenderer will be eligible for placement of Purchase Orders for equal proportion of tendered quantities (50:50 or 33.33 : 33.33:33.33) for such item(s) for which they are declared as lowest (L1).
- d. CMSS will counter offer the lowest rate (L1 rate) to other Tenderers in the order of their ranking i.e. L2, L3 and so on will be asked to match the L1 price.
- e (i) In order to maintain uninterrupted supplies, the CMSS will place orders with minimum of two suppliers for tendered product with 70% of the orders given to L1 and the balance 30% to the next Matched Lowest Tenderer.
- (ii) In case there is no L2 /matched bidder, balance quantity up to extent of quoted quantity or at most for balance 50% quantity can be offered to L1 bidder. Quantity beyond quoted quantity will be ordered on mutual consent.

- (iii) In case L1 bidder has quoted for 50% quantity, the balance quantity will be offered to L2 and L3 bidders for 30% and 20% quantity respectively.
 - (iv) In case there is no L3/matched bidder at 3rd position (i) above may be followed or balance 50% quantity may be offered to L2/matched bidder in case L1 does not agree to supply 70% of tendered quantity.
 - (v) In case of requirement of large quantities or to ensure earlier deliveries, CMSS may place orders with 3 suppliers in the ratio of 50:30:20.
- f. If the lowest supplier has failed to supply the required Drugs within the stipulated time or within the extended time, as the case may be, CMSS may cancel such purchase orders and on cancellation, CMSS may place Purchase Orders with the Matched Lowest Tenderer or to the other tenderers at the risk and cost of the defaulted supplier.
- g. The supplier shall complete the supply of the Drugs required by CMSS at the consignee destination mentioned in the schedule, within minimum required period of 60 days or as stipulated in LOA/P.O. from the date of the LOA/purchase orders, which will be sent by email to the successful tenderer.
- h. The supplier shall supply the Drugs at the specified destination and submit a copy of the Purchase Order, Delivery Challan and other relevant documents at the same destinations.
- i. After supply of Drugs at the specified destinations, the supplier shall submit Invoice (Original), Certificate of analysis (Batch Wise) and other relevant documents etc., at the Head Office, CMSS for claiming payment.
- j. Subject to para (h) and para (i) above, CMSS will process the invoices submitted by the supplier and the payments against supply will be made within 60 days from the date of submission of all relevant documents to the

CMSS provided the Drugs supplied has been declared of STANDARD QUALITY, by the Empanelled Laboratory of CMSS.

14. SUPPLY / DELIVERY CONDITIONS

- 14.1 The supplier should acknowledge the receipt of the Purchase Order within 3 days of its receipt.
- 14.2 The supplies will be made in staggered quantities as detailed in **Annexure –I.**
- 14.3 (a) The supply will be in lots as shown in Annexure-1. The supplier shall supply the ordered quantity (lot wise) within minimum required period of 60 days as per details in purchase order at the destinations mentioned therein. If the above day happened to be a holiday for CMSS, the supply should be completed by 5.00 PM on the next working day. In case of non-execution of the order either partially or fully, CMSS reserves the right to cancel the purchase order or place fresh purchase orders on alternative source at the risk and cost of the default supplier. In such cases the CMSS, has every right to recover the cost and impose penalty including blacklisting of the supplier and the product.
- (b) With the prior approval of CMSS, the supplier may continue the supply the unexecuted quantity after the delivery dates/schedule as mentioned in LOA/P.O., with Liquidated Damages as specified in Clause 18 of the tender conditions on the delayed supplies.
- (c) Supplies should be made directly by the tenderer and not through any other Agency/Dealer/Distributor.
- (d) The Tenderer shall not, at any time, assign, or make over the contract or the benefit thereof for any part thereof to any person or persons whatsoever.
- 14.4 All goods must be of fresh manufacturing and must bear the dates of manufacturing and expiry. The bidder further warrants that all goods

supplied will have, at least 5/6th of the minimum shelf life must remain at the time of delivery to the consignee. The supplier will provide manufacturer's stability test data substantiating the claimed shelf life in the offered package.

14.5 A Certificate of Analysis from manufacturer's own Quality Control Lab covering each batch delivered is to be submitted along with shipping documents. The Certificate of Analysis shall include:

- a) Generic name of the product
- b) Batch No.
- c) Pharmacopoeial Reference and/ or In-house method
- d) Batch quantity
- e) Date of manufacture
- f) Expiry date
- g) Date of test
- h) Description
- i) All identity, potency, purity, contents, label claim and all other test required by the specified pharmacopoeia and/or In-house method. Both the actual results and the limits for the individual tests should be given
- j) Conclusion
- k) Qualified signatures

The above mentioned batch shall be manufactured in accordance with the applicable GMP regulations.

14.6 All the Tenderers are required to supply the product(s) with printed text "GOVT. OF INDIA SUPPLY – NOT FOR SALE" in red-colour on the strips, blisters, vials, ampoules & bottles and also on the external packings. Goods received without this print will not be accepted by CMSS/**Consignee**. Affixing of rubber stamp shall not be accepted. However, the approved art work will prevail.

14.7 The Tenderer shall take back goods, which are not utilized by the CMSS within the shelf life period, based on mutual agreement.

- 14.8 If at any time the Tenderer has, in the opinion of the CMSS, delayed the supply of drugs due to one or more reasons related to Force Majeure events such as riots, mutinies, wars, fire, storm, tempest or other exceptional events at the manufacturing premises, the time for supplying the drugs may be extended by the CMSS at its discretion for such period as may be considered reasonable. However, such extension shall be considered only if a specific written request is made by the Tenderer within 10 days from the date of occurrence of such event. The exceptional events do not include scarcity of raw material, increase in the cost of raw material, electricity failure, labour disputes/ strikes, insolvency, and closure of the factory/ manufacturing unit on any grounds etc.
- 14.9 The supplier shall not be liable to pay LD/ penalty and forfeiture of security deposit for the delay in executing the contract on account of the extension of supply period on the ground of force majeure events.

15. PACKING

- 15.1 The Drugs shall be supplied in the package specified in the Technical Specifications in **Annexure-I**.
- 15.2 The Weight, Volume & Dimensions of shipping cartons & intermediate packaging carton may be mentioned.
- 15.3 The packing shall be of a sturdy quality to provide adequate protection of the product for carriage to final destination, **PAN INDIA** including remote locations under adverse climatic and storage conditions and high humidity. Used cartons should never be used.
- 15.4 Products with specific temperature requirements will be packed and stored and delivered in appropriate conditions.

- 15.5 The packaging unit should be strong, able to be stacked to a height of 4 pallets as static storage and 2 pallets during transport, and resistant to puncturing.
- 15.6 Special attention of suppliers is invited to ensure the material is of good quality and is free from development of fungus/termites. In case fungus/termites develop within 15 days of delivery at specified locations, suppliers at their own cost would lift the entire batch from various locations and supply fresh replaced batches. For LD purposes the date of receipt of replaced batches would count. In addition, the expenses on pest control to be undertaken by CMSS would be borne by the tenderer.

16. QUALITY CONTROL

- 16.1 Quality Control is an essential part of the current procurement and it is the responsibility of the supplier to ensure quality assurance as per specifications/bid document. The products should conform to the standards as specified in **Annexure-I** of the Tender document.
- 16.2 The bidder/ supplier understand that the tendered item/items is/are critical health goods and the quality parameters of supplied goods are to be ensured during complete specified shelf life as indicated in technical specification/bid document/ official compendium. Bidder/Supplier also appreciate that failure in quality checks is serious default as it may derail entire programme and can also risk the life of users of supplied health goods.
- 16.3 CMSS will embark on stringent quality checks to ensure that tendered goods meet required standards throughout specified shelf life. For this purpose, CMSS reserves the right to carry necessary inspections/tests at any of, or any combination of or/ all of following stages:
- (a) At Pre-Dispatch stage.
 - (b) At Delivery Stage: inspection done once the goods reach at consignee location and before taking over supplied goods in inventory.

(c) Post Delivery Surveillance: The Drugs/goods shall have the active ingredients and all other parameters at the prescribed level as indicated in official compendiums or technical specifications throughout the shelf life period of the drugs/ goods. Quality Monitoring Activities may also be organized by CMSS post delivery.

16.4 CMSS may engage the services of a Quality Control Agent & Quality Control Testing Laboratories for the purpose of Inspection & Quality Control.

16.5 Inspection Methodology: At pre-dispatch and/or delivery stage, samples of supplies in each batch will be chosen for testing. The samples will be collected and sent to designated laboratories (Government/ Private Drugs Testing Laboratories) for testing as decided by the CMSS. Handling and testing charges will be borne by CMSS.

At post delivery surveillance - The samples will be collected from the warehouse of CMSS/or final consignee in States/UTS and sent to designated Quality Control Labs in respect of supplied goods at any point during specified shelf life as per decision of CMSS.

In case of failure of batches during or at any stage (indicated at 16.3), the testing charges would be claimed for the defaulting vendor.

16.6 The supplies will be deemed to be completed only upon receipt of the quality certificates from the laboratories.

"Not of Standard Quality" or spurious or adulterated or misbranded, such batch/ batches will be deemed to be rejected goods.

16.7 **At any of Inspection/testing stage**, samples which do not meet quality requirement/specifications shall render the relevant batches liable to be rejected. If the sample is declared to be "Not of Standard Quality" or spurious or adulterated or misbranded, such batch/ batches will be deemed to be rejected goods and the cost of entire batch paid will be recovered whether consumed fully/ partially. Besides action may also be initiated for debarring/blacklisting against supplier for suitable period.

16.8 In the event of the samples of Drugs/goods supplied fails in quality tests or found to be not as per specifications at any of testing stages, depending upon

the type, nature and seriousness of failure, consequences resulting from such default, availability of alternate sources, the CMSS is at liberty to either :

- (i) Ask the supplier to replace the entire quantity of relevant batches, in addition to imposition of penalty @ 25% of batch supply cost or
- (ii) to make alternative purchase of the items of Drugs from other approved suppliers or in the open market or from any other Tenderer who might have quoted higher rates, at the risk and the cost of the supplier.
- (iii) In addition to (i) or (ii) above, action to debar/blacklist the supplier for suitable period, as decided by CMSS may also be initiated. In addition forfeiture of PSD.
- (iv) In addition, the FDA/ Drugs Control Authority of concerned State will be informed for initiating necessary action on the Tenderer in their state. Security deposit will also be forfeited without any intimation.
- (v) The decision of the CMSS or any officer authorized by CMSS, as to the quality of the supplied drugs, medicines, vaccines etc., shall be final and binding.

16.9 If the product is non-Pharmacopoeia then the supplier must provide the in house test method along with the required reference standards if asked for. The Master Formula of the products shall be provided whenever askedfor.

17. PAYMENTPROVISIONS

17.1 No advance payments towards costs of drugs will be made to theTenderer.

17.2 The payment towards supply of drugs to CMSS will be made either by means of Cheque or through RTGS (Real Time Gross Settlement System)/ Core Banking/ NEFT.TheTenderershallfurnishtherelevantdetailsinoriginal(**Annexure-XII**) to make the payment through RTGS/Core Banking/NEFT.

- 17.3 All bills/ Invoices should be raised in duplicate and the bills should be drawn in the name of Central Medical Services Society, Annexe to Main Building of Indian Red Cross Society, 1, Red Cross Road, New Delhi – 110021 or in the name of any other authority as may be designated.
- 17.4 Payments for supply will be made only after completion of supply of Drugs ordered in the individual Purchase Order PROVIDED quality reports are acceptable. The CMSS shall endeavour to make payment within 75 days of supplies in respect of items requiring sterility tests and within 60 days from the date of submission of invoice or receipt of goods (whichever later) along with all the relevant documents of tender.
- 17.5 Part payments for supply will be considered only after supply of 50% of Drugs ordered in the individual Purchase Order PROVIDED reports of Standard Quality on samples testing are received from approved laboratories of CMSS.
- 17.6 (i) Variations in prices will be admitted on account of increase or decrease in the Statutory taxes levies, such as customs duty, GST etc., on production of relevant government notification, but during scheduled delivery period only.
- (ii) Any increase in taxes and other statutory duties/levies after the expiry of the delivery date shall be to the supplier's accounts. However, the benefit of any decrease in these taxes/duties shall be passed on to the purchaser by the supplier.

18. LIQUIDATED DAMAGES AND OTHER PENALTIES:

18.1 DELAYS IN SUPPLIER'S PERFORMANCE:

- (a) Delivery of the goods and performance of services shall be made by the supplier in accordance with the time schedule specified by the purchaser in its purchase order. In case the supply is not completed in the stipulated delivery period, as indicated in the purchase order, purchaser reserves the right either to short-close/cancel this purchase

order and/or recover liquidated damage charges. The cancellation/short-closing of the order shall be at the risk and responsibility of the supplier and purchaser reserves the right to purchase balance-unsupplied quantity at the risk and cost of the defaulting vendor.

- (b) Repeated/habitual delays by the supplier in the performance of its delivery obligations shall render the supplier liable to any or all of the following sanctions; imposition of liquidated damages, forfeiture of its performance security, and/or termination of the contract for default and purchaser reserves the right to purchase balance-unsupplied quantity at the risk and cost of the defaulting vendor.
- (c) If the suppliers are not completed in the extended delivery period, the purchase order may be short closed without any compensation to supplier and the performance security shall be forfeited.
- (d) Quantum of liquidated damages assessed and levied by the purchaser shall be final and not challengeable by the supplier.
- (e) Purchaser reserves the right to debar/blacklist the supplier for a suitable period who habitually failed to supply the goods/services in time. The decision of purchaser will be final and binding.

18.2 If the supply reaches the designated consignee places or CMSS Warehouse after the 60th day or after scheduled delivery date mentioned in P.O., a liquidated damages will be levied at 0.5% per week for delayed supply up to a maximum of 10% of P.O. Cost, irrespective of the fact that whether the CMSS has suffered any damage/ loss or not, on account of delay in effecting supply. If the 60th day happens to be a holiday the supply will be accepted on the next working day without any penalty.

- 18.3 If the supply is received in damaged condition it shall not be accepted. In case of damage in the packing only, the supply may be accepted subject to purchaser's decision and after levying a penalty which may be upto 5% of cost of package received with damaged packing.

19. WARRANTY

- 19.1 The supplier shall warrant that goods/items to be supplied shall be new and free from all defects and faults in material, workmanship and manufacturing and shall be of the highest grade and consistent with the established and generally accepted standards for materials of the type ordered and shall perform in full conformity with the specifications. Supplier shall warrant that goods supplied will meet and maintain the technical specification throughout specified shelf life. The supplier shall be responsible for any defects that may develop during storage/ use, arising because of improper quality of API, Excipients, due to packaging material etc. manufacturing /packaging details from faulty materials, manufacturing or processing or otherwise and shall remedy such defects at his own cost when called upon to do so by the purchaser who shall state in writing in what respect stores is faulty.
- 19.2 The portion of clause 16.8 (i) to (v) would also apply in case the goods/items supplied do not match to specifications/specified parameters/standards within the stipulated shelf life of the products.
- 19.3 Replacement under warranty clause shall be made by the Supplier within 60 days period, free of all charges at site including freight, insurance and other incidental charges.
- 19.4 If any defect is not remedied within a reasonable time the purchaser may proceed to procure such defective quantities at the Supplier's risk

and cost from other tenderer or open market, but without prejudice to any other rights which the purchaser may have against the contract in respect of such defects.

20. DEDUCTION & OTHER PENALTIES ON ACCOUNT OF DELAYS/ DEFAULT/ TERMINATION/ PART CANCELLATION/SHORT CLOSURE:

- 20.1 If the samples do not conform to tender specifications, the Tenderer will be liable for relevant action under the existing laws and the entire stock in such batch has to be taken back by the Tenderer within a period of 30 days of the receipt of the letter from the CMSS. Such stock shall be taken back at the expense of the Tenderer. The CMSS has the right to destroy such "NOT OF STANDARD QUALITY DRUGS" if the Tenderer does not take back the goods within the stipulated time. The CMSS will arrange to destroy the "NOT OF STANDARD QUALITY DRUGS" after the expiry of 30 days mentioned above without further notice, and shall also collect demurrage charges calculated at the rate of 0.5% per week on the value of the drugs rejected till such time stipulated.
- 20.2 The CMSS will be at liberty to terminate, without assigning any reasons thereof, the contract either wholly or in part or short closed on 30 days notice. The Tenderer will not be entitled for any compensation whatsoever in respect of such termination besides forfeiture of Security Deposit and purchaser reserves the right to purchase balance-unsupplied item at the risk and cost of the defaulting vendor.
- 20.3 For infringement of the stipulations of the contract, for non performance/compliance of contractual terms or for other justifiable reasons, the contract may be terminated either wholly, or in part or short closed. by the CMSS and the Tenderer shall be liable to pay for all losses sustained by the CMSS in consequence of the termination which may be

recovered personally from the Tenderer or from his properties, as per rules besides forfeiture of Security Deposit.

- 20.4 In the event of making Alternative Purchase, as specified in in Clause 13(f), Clause 14.2(a), Clause 16.8 and other clauses herein, penalty will be imposed on the supplier. The excess expenditure over and above contracted prices incurred by the CMSS, in making such purchases from any other sources or in the open market or from any other Tenderer who has quoted higher rates and other losses sustained in the process, shall be recovered from the Security Deposit or from any other money due and become due to the supplier and in the event of such amount being insufficient, the balance will be recovered personally from the supplier as per rules.
- 20.5 In all the above conditions, the decision of the CMSS shall be final and binding.

21. FALLCLAUSE

- (i) Bidder undertakes and certifies that prices quoted are not higher than currently charged by it to institutional supplies/wholesalers/ any Govt. organisations/Charitable trust organisation for matching purchase terms/conditions. It is distinctly understood by bidder that in case of supply to such bodies (as detailed above) at price lower than the CMSS contracted price (within the contracted period specified) will immediately invite the reduction in the rates of the contract.
- (ii) Breach of above, whenever comes to notice of CMSS, will be viewed seriously and action will be taken against the supplier which may include forfeiture of Security Deposit (SD) along with recovery of price differential, termination of the contract and disqualification from

participating in future tender for the product for a suitable period.
Decision of purchaser will be final and binding in this regard.

22. SAVING CLAUSE

No suit, prosecution or any legal proceedings shall lie against the Tender Inviting Authority or any person for anything that is done in good faith or intended to be done in pursuance of the tender.

23. PROHIBITION OF INFLUENCING CMSS BY THE BIDDER:

- (i) No bidder shall contact or influence the CMSS or its employees on any matter relating to its bid from the time of bid opening to the time the contract is awarded.
- (ii) Any effort by a bidder to influence the CMSS in the bid evaluation, bid comparison or contract award decisions may result in rejection of the bidder's bid.
- (iii) The bidder shall not make any attempt to establish unsolicited and unauthorized contact with the Tender Accepting Authority, Tender Inviting Authority or Tender Evaluation Committee after opening of the bids and prior to the notification of award and any attempt by any bidder to bring to bear extraneous pressures on the Tender Accepting Authority, Inviting Authority or Tender Evaluation Committee, shall be sufficient reason to disqualify the bidder.
- (iv) Notwithstanding anything contained in clause (iii) above the Tender Inviting Authority or the Tender Accepting Authority, may seek bonafide clarifications from bidders relating to the bids submitted by them during the evaluation of bids.

24. RESOLUTION OF DISPUTES

- (i) The CMSS and the supplier shall make every effort to resolve, amicably by direct informal negotiation any disagreement or dispute arising between them under or in connection with the contract.
- (ii) In case of a dispute or difference arising between the CMSS and a supplier relating to any matter arising out of or connected with this agreement, such dispute or difference shall be settled in accordance with the Arbitration and Conciliation Act, 1996. The venue of arbitration shall be New Delhi.

25. JURISDICTION

In the event of any dispute arising out of the tender such dispute would be subject to the jurisdiction of the Civil Court within the city of New Delhi only.

This page is intentionally left blank

Annexure - I

**CENTRAL MEDICAL SERVICES SOCIETY
NEW DELHI- 110021**

**TENDER FOR THE SUPPLY OF ANTI TB DRUGS (TABS/CAPS)
TO CMSS FOR THE YEAR 2019-21**

LIST OF PRODUCT& THEIR TECHNICAL SPECIFICATIONS

Sl. No.	Drug Name	Unit	Approx. Tender Quantity in Units
1.	ZLN (A)	Tablet	6,57,56,295
2.	Efa 600 mg	Tablet	2,41,53,597
3.	ZLN (P)	Tablet	86,80,076
4.	Nevirapine 200 mg	Tablet	66,36,000
5.	Efa 200 mg	Tablet	3,27,43,200
6.	Syrup Zidovudine	Bottles	7,079
TOTAL			13,79,76,247

Delivery Terms:

- (a) The delivery shall be on DDP (Destination basis) as shown at Annexure-I B.
- (b) The delivery (In lot wise manner) shall be within 60 days from the date of P.O.

Purchase Orders will be placed in 3 lots to be supplied as per below schedule:-

- 1st Lot – for 30% of total Qty. (To be delivered within 75 days from LOA date)
- 2nd Lot - for 20% of total Qty. (To be delivered within 135-195 days from LOA date)

Annexure 1A – Technical Specification

Annexure 1B – CMSS warehouses (Consignee Location)

This page is intentionally left blank

Annex 1A

DESCRIPTION AND SPECIFICATION**Schedule –I**

Fixed Dose Combination of Zidovudine, Lamivudine & Nevirapine

1. Each Tablet / Capsule contains

- Zidovudine 300 mg IP or any other pharmacopoeia
- Lamivudine 150mg IP or any other pharmacopoeia
- Nevirapine 200mg IP or any other pharmacopoeia

2. Standard Shelf life : 2 Years (24 months)

3. Quantity per Container : 60 nos

4. Primary Container : Suitable Opaque plastic bottle to contain 60 tablets / capsules
: Each bottle duly sealed with plastic plug/diaphragm and should contain silicon packs.

 : Tightly fitting suitable screw cap.

5. Label : Glazed label in accordance with statutory requirement as per Drugs and Cosmetics Act as per Rule 97.

 Standard Color of labels to be used as approved DAC.

6. Secondary Container : 5 Ply Shipper to accommodate 140 bottles per shipper.

 Shipper fabricated from virgin kraft paper, 3 Liner-150

 GSM, 2 Flute-150 GSM BS: NLT 12.5 kg /sq.cm.

 : Each shipper to be labelled as per statutory requirements.

This page is intentionally left blank

Schedule –II

Efavirenz

1. Each Tablet / Capsule contains
 - Efavirenz 600 mg IP or any other pharmacopoeia
2. Standard Shelf life : 2 Years (24 months)
3. Quantity per Container : 30 nos
4. Primary Container : Suitable Opaque plastic bottle to contain 30 tablets / capsules
: Each bottle duly sealed with plastic plug/diaphragm and should contain silicon packs.
: Tightly fitting suitable screw cap.
5. Label : Glazed label in accordance with statutory requirement as per Drugs and Cosmetics Act as per Rule 97.
Standard Color of labels to be used as approved DAC.
6. Secondary Container : 5 Ply Shipper to accommodate 140 bottles per shipper.
Shipper fabricated from virgin kraft paper, 3 Liner-150 GSM, 2 Flute-150 GSM BS: NLT 12.5 kg /sq.cm.
: Each shipper to be labelled as per statutory requirements.

This page is intentionally left blank

Schedule – III

Fixed Dose Combination of Zidovudine, Lamivudine & Nevirapine (Paediatric)

1. Formulation of Medicine :Tablet for Oral suspension / Dispersible Tablet
2. Each tablet contains
 - Zidovudine 60 mg IP or any other pharmacopoeia
 - Lamivudine 30 mg IP or any other pharmacopoeia
 - Nevirapine 50 mg IP or any other pharmacopoeia
3. Standard Shelf life : 2 Years (24 months)
4. Quantity per Container :60 nos
5. Primary Container : Suitable Opaque plastic bottle to contain 60 tablets.
: Each bottle duly sealed with plastic plug/diaphragm and should contain silicon packs.
: Tightly fitting suitable screw cap.
6. Label : Glazed label in accordance with statutory requirement as per Drugs and Cosmetics Act as per Rule 96.
Standard Color of labels to be used as approved DAC.
7. Secondary Container : 5 Ply Shipper to accommodate 140 bottles per shipper.
Shipper fabricated from virgin kraft paper, 3 Liner-150 GSM, 2 Flute-150 GSM BS: NLT 12.5 kg /sq.cm.

: Each shipper to be labelled as per statutory requirements.

This page is intentionally left blank

Schedule – IV**VII. Nevirapine****1. Each tablet/capsule contains**

- Nevirapine 200 mg IP or any other pharmacopoeia

2. Standard Shelf-life : 2 years (24 months)**3. Quantity per Container** : 60 nos.

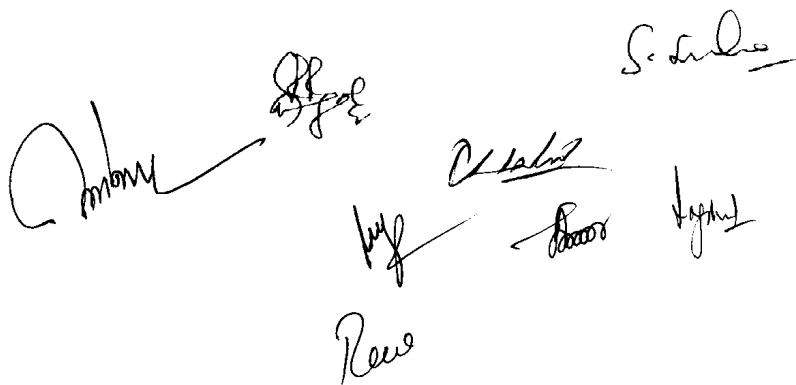
4. Primary Container : Suitable opaque plastic bottle to contain 60 tablets/capsules
: Each bottle duly sealed with plastic plug/diaphragm and should contain silicon packs.
: Tightly fitting suitable screw cap.

5. Label : Glazed label in accordance with statutory requirement as per Drugs and Cosmetics Act as per Rule 97.

Standard color of labels to be used as approved DAC

6. Secondary Container : 5 ply Shipper to accommodate 140 bottles per shipper.
Shipper fabricated from virgin Kraft paper. 3 Liner – 150 GSM, 2 Flute – 150 GSM BS: NLT 12.5 KG/sq.cm

: Each shipper to be labeled as per statutory requirements.

A collection of handwritten signatures in black ink, arranged in a cluster. The signatures are of varying styles, some appearing to be initials or full names, and are likely representing different stakeholders involved in the approval process.

This page is intentionally left blank

Schedule – V

VI. Efavirenz (Paediatric)

1. Formulation of Medicine: Scored Tablet

2. Each tablet contains

- **Efavirenz** 200 mg IP or any other pharmacopoeia

3. Standard Shelf-life : 2 years (24 months)

4. Quantity per Container : 30 nos.

5. Primary Container : Suitable opaque plastic bottle to contain 30 scored tablets

: Each bottle duly sealed with plastic plug/diaphragm and should contain silicon packs.

: Tightly fitting suitable screw cap.

6. Label : Glazed label in accordance with statutory requirement as per Drugs and Cosmetics Act as per Rule 97.

Standard color of labels to be used as approved DAC

7. Secondary Container : 5 ply Shipper to accommodate 140 bottles per shipper.

Shipper fabricated from virgin Kraft paper. 3 Liner – 150 GSM, 2 Flute – 150 GSM BS: NLT 12.5 KG/sq.cm

: Each shipper to be labeled as per statutory requirements



S. C. Chatterjee


This page is intentionally left blank

Schedule – VI**Technical Specifications of Zidovudine Oral Solution**

1. Formulation of medicine: Oral Solution
2. Each 5ml solution contains: Zidovudine 50 mg/50 ml IP or any other pharmacopeia
3. Standard Shelf life: 2 years (24 months)
4. Quantity per container: 100 ml/ 240ml (10mg/ml)
5. Primary Container: Packed in HPDE opaque bottle with a child resistance cap with a liner and a measuring syringe.
6. Label: Glazed Label in accordance with statutory requirement as per drug and cosmetics act as per rule 96. Standard colour of labels to be used as approved by NACO
7. Secondary Container: 5 ply shipper to accommodate the bottles as per volume. Shipper fabricated from virgin kraft paper 3 liner, 150 GSM, 2 Flute 150 GSM, DS-NLT 12.5 KG/sq cm. each shipper should have the facility to store and transport syrup bottle at temperature less than 30 degree Celsius cool and dry place.
8. Certification: The product should be approved by State/Central licensing authority as per the provisions of Drugs and cosmetics Act and rules there under. Appropriate certificate (GMP/Manufacturing License/ import license) to this effect is mandatory.

This page is intentionally left blank

Annexure 1B

1. The details of CMSS warehouses are given below:-

CMSS Warehouse & Mapped States			
Sr No	Warehouse Location	States/UT's covered by the Warehouse	Address
1	Agartala	Tripura	Guwahati (Tripura), Near ONGC Complex, PO-Hapania , Agartala-799010
2	Ahmedabad	Gujarat	Opp. P&T Colony, Shahalam, Ahmedabad-380028
		Dadra and Nagar Haveli	
		Daman and Diu	
3	Bangalore	Karnataka	APMC Yard, Yeswanthpur, Bangalore - 560022
4	Bhopal	Madhya Pradesh	Chhola Road, Near Nishatpura Cabin, Bhopal, M.P.
5	Chandigarh	Chandigarh	Plot no 5, Industrial Area, Phase -II, Chandigarh-160002
		Punjab	
		Haryana	
		Himanchal Pradesh	
6	Chennai	Tamil Nadu	Chitalapakkam(P.O), Chennai - 600064, T.N.
		Pondicherry	
		Andaman & Nicobar Islands	
7	Jajpur	Odisha	Dhawalgiri, Post-Jajpur Road, Dist-Jajpur, Odisha
8	Delhi	Delhi	WareHousing Scheme Block No 2.,Kirti Nagar, New Delhi-110015.
9	Guwahati	Nagaland	EPIP Complex, Amingaon, Guwahati-781031
		Assam	
		Arunachal Pradesh	
		Meghalaya	
		Manipur	
		Mizoram	
		Sikkim	
10	Hyderabad	Telangana Andhra Pradesh	Behind Gandhibhavan, Nampally, Hyderabad-500001
11	Jaipur	Rajasthan	Plot no SPL-1296, EPIP Sitapura, Ind Area, Jaipur-302002
12	Kolkata	West Bengal	Rehabilitation Industries Corporation Estate, Bonhooghly, Kolkatta - 700 108
13	Lucknow	Uttar Pradesh	New Mandi Complex, Sitapur Road Lucknow-226020
14	Navi Mumbai	Maharastra	Sector-20 Near APMC Fruit Market , VashiNavi Mumbai-400613
		Goa	
15	Pathankot	Jammu & Kashmir	Base Depot, Chakki Bank, Prem Nagar , Pathankot
16	Patna	Bihar	Bazar Sammittee , Katra Bazar, Patna city-800008
17	Raipur	Chattisgarh	Rawabhata , Raipur -493221
18	Ranchi	Jharkhand	Po-Hehal , Ratu Road , Dist-Ranchi-8340010
19	Srinagar	Uttarakhand	Near Anchal Dairy , Pauri Road , Srinagar-246174 (Garhwal)
20	Trivandrum	Kerala	Kinfra Apparel Park, Thumba, Palliphura(PO), Trivandrum-695586
		Lakshadweep	

This page is intentionally left blank

Annexure -II**TENDER FORWARDING LETTER**
(To be given on Company Letter Head)

Date:

To,
DG&CEO,
Central Medical Services Society

2nd floor, VishwaYuvak Kendra,

Pt. Uma Shankar Dikshit Marg, New Delhi 110021

Sub: Acceptance of Terms & Conditions of Tender.

Tender No: CMSS/PROC/2019-21/NACP/010

Name of Tender: - Online tender for Procurement of ARV DRUGS (TABS/CAPS)

Dear Sir,

1.I/We have downloaded/obtained the tender document(s) for the above mentioned
'Tender/Work' from the web site(s) namely:

as per your advertisement, given in the above mentioned website(s).

2.I/We hereby certify that I/we have read the entire terms and conditions of the tender documents from Page No. _____ to _____ (Including all documents like annexure(s), schedule(s), etc.), which form part of the contract agreement and I/we shall abide hereby by the terms /conditions /clauses contained therein.

3.The corrigendum(s) issued from time to time by your department/organization too _____ has also been taken into consideration, while submitting this acceptance letter.

4.I / We hereby unconditionally accept the tender conditions of above mentioned tender document(s)/ corrigendum(s) in its totality/entirety.

5.I/We do hereby declare that our Firm has not been blacklisted/debarred by any Govt.Department/Public sector undertaking for the quoted product from any procurement agency or as a whole.

6.I/We hereby declare that bid will remain valid for a period of 150 days after opening _____ of Tender bid/packet 1.

7. I/We certify that all information furnished by your Firm is true & correct and in the event that the information is found to be incorrect/untrue or found violated, then your department/organization shall without giving any notice or reason therefore or summarily reject the bid or terminate the contract, without prejudice to any other rights or remedy including the forfeiture of the full said earnest money deposit absolutely.

Yours Faithfully,
(Signature of the Bidder, with Official Seal)

This page is intentionally left blank

Annexure-III**DETAILS OF E.M.D. SUBMITTED**

We herewith submit the E.M.D. of Rs._____ in the form of RTGS/ NEFT/ Bank Guarantee vide document Ref. No._____ Dated: _____ Bank: _____ in favour of CMSS for the following items of ARV DRUGS (TABS/CAPS):

Sl. No.	Name of the product	UOM	Quantity in Bid	Amount of EMD Payable (in INR) for 100% quantity	Amount of EMD Payable (in INR) for 50% quantity	Quantity Quoted	% of the Bid Quantity	Amount of EMD
1.	ZLN (A)	Tablet	6,57,56,295	93,00,000	4650000			
2.	Efa 600 mg	Tablet	2,41,53,597	27,00,000	1350000			
3.	ZLN (P)	Tablet	86,80,076	4,00,000	200000			
4.	Nevirapine 200 mg	Tablet	66,36,000	3,00,000	150000			
5.	Efa 200 mg	Tablet	3,27,43,200	22,00,000	1100000			
6.	Syrup Zidovudine	Bottles	7,079	30,000	15000			
	TOTAL		13,79,76,247	1,49,30,000	7465000			

This page is intentionally left blank

Annexure-IV

**PROFORMA FOR PERFORMANCE STATEMENT
(FOR A PERIOD OF LAST 2 YEARS)**

Name of firm _____

Sr. No. of the Product _____

Name of the Product _____

Sl.	Name of Product	Year 2016-17	Year 2017-18	Quantity manufactured and marketed	UOM	Name and full address of the Purchaser
1	2	3	4	5	6	7
1.	ZLN (A)				Tabs	
2.	Efa 600 mg				Tabs	
3.	ZLN (P)				Tabs	
4.	Nevirapine 200 mg				Tabs	
5.	Efa200 mg				Tabs	
6.	Syrup Zidovudine				Bottles	

Note:

1. Proof for the manufacturing (BMR) / importing of the items quoted to be produced, if demanded.
2. Copies of purchase orders in support of performance statement may be uploaded along with this

Annexure-IV.

Signature of Tenderer

Accountant

Name in Capitals

Date:

Seal:

Signature of Auditor/ Chartered

Name in Capitals

Date

Seal

This page is intentionally left blank

Annexure-V**ANNUAL TURN OVER STATEMENT**

The Annual Turnover (Sales) of M/s. _____ for the past two years are given below and certified that the statement is true and correct.

Sl. No. Financial Year**Turnover in Lakhs (Rs)**

1.	2016-2017	-
2.	2017-2018	-

Total - Rs. _____ Lakhs.

Average Turnover Per Annum in the last two years mentioned above - Rs. _____ Lakhs.

Date:

Seal:

Signature of Auditor/
Chartered Accountant
(Name in Capital)

This page is intentionally left blank

Annexure- VI**LIST OF ITEMS QUOTED & THEIR PRODUCTION CAPACITY****1. Name of the firm :****2. Address of the firm as given in Drug license :****3. Details of Endorsement for all products quoted:**

Sch No	Item Code	Drug Name	UOM	Quantity Tendered	Quantity quoted	Manufacturing Capacity	Quantity Manufactured 8		Average Quantity Manufactured
							2016-17	2017-18	
1	2	3	4	5	6	7	8A	8B	9
	TOTAL								

Date:

Authorized Signatory:

This page is intentionally left blank

Annexure – VII**CHECK LIST****Packet 1**

1. Checklist – Annex-VII		Yes		No	
2. EMD in the form of DD/ BG as per Annex-III / MSME certificate for exemption		Yes		No	
3. Certificate by MSME/ SSI units in support of being a MSE/ SSI unit.		Yes		No	
4. Duly attested photocopy of License for the product duly approved by the Licensing Authority for each and every product quoted.		Yes		No	
5. Authorization letter nominating a responsible person of the tenderer to transact the business with the Tender inviting Authority.		Yes		No	
6. Market Standing Certificate issued by the Licensing Authority		Yes		No	
7. Non Conviction Certificate issued by the Drugs Controller		Yes		No	
8. WHO-GMPCertificate		Yes		No	
9. Annual Turnover Statement for 2 Years (Annex-V)		Yes		No	
10. Copies of Balance Sheet & Profit & Loss Account for last two years		Yes		No	
11. Proforma for Performance Statement (Annex-IV)		Yes		No	
12. List of items quoted and their production capacity – Annex-VI		Yes		No	
13. Mandate Form for RTGS Annex-XII		Yes		No	

14. The Tender document signed by the tenderer in all pages with office seal.		Yes		No	
15. Long Term Stability Data of the quoted products (at least for 3 batches) to support shelf life)		Yes		No	
16. Capacity and Quality Certificate issued by the Licensing Authority		Yes		No	
17. Undertaking that Firm is not being blacklisted or debarred from any Govt. Agency		Yes		No	
18. Notarized Undertaking by MSE (Annex – VIII)		Yes		No	
19. No Deviation Certificate		Yes		No	
20. CoPP (Certificate of Pharmaceutical Product)		Yes		No	
21. Tender forwarding letter (Annexure-II)		Yes		No	
22. Near Relative Certificate (Annexure-XVIII)		Yes		No	

Annexure-VIII**NOTARISED UNDERTAKING BY MSE COMPANIES****(In 20- Rupees stamp paper)**

I _____, S/o _____, Proprietor / Partner / Managing Director of _____ (Proprietary Concern / Firm / Company Ltd.) execute this Undertaking for myself and on behalf of _____ (Proprietary Concern / Firm / Company Ltd.).

2. Whereas, CMSS (Tender Inviting Authority) has invited Tender for supply of Drugs and medicines for the year 2018-2019 and in pursuant to the conditions in the tender documents. M/s _____ (Proprietary Concern/ Firm / Company Ltd.), having its Office at _____ is exempted from payment of Earnest Money Deposit as indicated in the **Annexure-II** of tender document.

3. And whereas, in pursuant to the conditions in Clause Nos. 9.2, 9.3& 9.4 of the tender, the Earnest Money Deposit can be forfeited by the Tender Inviting Authority in case of violation of any of the conditions and for non-performance of the obligation under tender document.

4. In consideration of exempting M/s. _____ (Proprietary Concern/ Firm / Company Ltd.) from payment of Earnest Money Deposit as indicated in the **Annexure-II** of tender document, I undertake to pay the said sum without any demur on receipt of demand issued by the tender inviting authority.

M/s _____

For Self and Firm / Company Ltd.

Signature and Seal

Witness:-

(1)

(2)

This page is intentionally left blank

Annexure-IX**Central Medical Services Society**

Ministry of Health & Family Welfare (Government of India)
2nd floor, VishwaYuvak Kendra, Pt. Uma Shankar Dikshit Marg, Teen Murti Road,
Opposite Police Station Chankaya Puri, New Delhi-110021

LETTER OF ACCEPTANCE

No: CMSS/PROC/2019-21/NACP/AL/010

Date _____

To,
M/s _____
Address: _____
Attn: _____
Phone: _____
Email _____

(Kind Attn: _____ (Name), _____ Designation)

Sub: Acceptance of Tender for supply of ARV DRUGS (TABS/CAPS) to CMSS

Ref: 1) CMSS Tender No. CMSS/PROC/2019-21/NACP/010 opened on _____

2) Your Ref. No. _____ dated _____ in response to above mentioned tender.

Dear Sir,

I am pleased to inform you that your offer in response to above mentioned tender for supply of ANTI TB DRUGS (TABS/CAPS) has been accepted for following items:

Sch No.	Items Description	Quantity	Unit	Ex-Works per Unit (Rs.)	GST (%)	GST (Rs)	Transport & any other charges (Rs.)	Total unit price (all incl.) (Rs.)	Grand Total (Rs.)
1									
2									
Grand Total									

- You are requested to deposit Security Deposit @ 5% of the total value by NEFT/ RTGS/ Bank Guarantee/Demand Draft/ Banker's Cheque and enter into an Agreement, as per the format given in **Annex-X** of the Tender document, within 15 days from the date of receipt of this letter.
- Please convey your acceptance to this LOA within 03 days of issue, else it will be presumed that you are not keen to accept the LOA and CMSS may proceed for allocation of quantity to other bidder and with other actions stipulated in referred Tender document.
- All other terms and conditions will be as per Tender document no. CMSS/PROC /2019-21/NACP /010 and subsequent amendments to it.

Yours faithfully,

(Sh. S.A. Khan)

General Manager (Procurement)**Encl: - Annexure A: List of manufacturing license and site address.**

This page is intentionally left blank

Annexure A to Acceptance Letter No:
Supplier: M/s _____

Annexure - A

LIST OF MANUFACTURING LICENSES & SITE ADDRESSES					
Sr. No.	Item Code	Item Description	Manufacturing Site Address	Manufacturing License No.	Remarks
1					
2					
3					

This page is intentionally left blank

Annexure – X**LONG TERM AGREEMENT (LTA) NO.:**CMSS/PROC/2019-21/NACP/010/LTA/.....**E- STAMP CERTIFICATE NO.:****LTA Validity: From** _____ **to** _____**TERMS OF AGREEMENT**

THIS AGREEMENT made the..... day of, year between Central Medical Services Society, Ministry of Health & Family Welfare (Government of India), 2nd floor, VishwaYuvak Kendra, Pt. Uma Shankar DikshitMarg, Teen Murti Road, Opposite Police Station ChankayaPuri, New Delhi-110021(here in after "the Purchaser") of the one part and (Name of Supplier) of..... (Address and Country of Supplier) (Here in after called "the Supplier") of the other part:

WHEREAS the Purchaser is desirous that certain Goods and ancillary services viz; Supply of ARV Drugs in the Tender Reference No.CMSS/PROC/2019-21/NACP/010, **Dt**_____(Brief Description of Goods and Services) and has accepted a bid by the Supplier for the supply of those goods and services for the sum of..... (Contract Price in Words and Figures) (Hereinafter called "the Contract Price").

WHEREAS the Supplier confirms that it is qualified, ready, willing and able to supply the ARVDrugs in accordance with the terms and conditions of this Agreement.

1. DEFINITIONS

Commencement Date means _____

Expiry Date means _____

Products,in singular form Product, means the item(s), as described and detailed above, provided by the Supplier to CMSS from time to time pursuant to this agreement.

Tender means Tender No. Tender No: **CMSS/PROC/2019-21/NACP/010**from CMSS to the Supplier, to quote for the cost of supply of the Products to CMSS.

Long Term Agreement, as abbreviated to Agreement or LTA, means this Agreement between the Parties, to provide Products, including its Annexes, however with due consideration of the order of precedence among the LTA and individual Annexes.

Parties means CMSS and the Supplier, their successors and assigns and where not repugnant to the context, their servants or agents.

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. LTA DOCUMENTS:

The following documents shall be deemed to form and be read and construed as part of this Agreement, viz.:

- (a) This LTA
- (b) The Notice Inviting Tender
- (c) Terms and Conditions of Tender Document as given in Tender No: **CMSS/PROC/2019-21/NACP/010** dt. _____
- (d) The Minutes of Pre-Bid meeting and corrigendum issued.
- (e) Schedule of Requirement.
- (f) The Technical Specification
- (g) The Supplier's Offer including Enclosures, Annex etc.
- (h) Any other document listed in the supplier's bid and replies to queries, clarifications issued by the purchaser, such confirmations given by the tenderer which are acceptable to the purchaser and the entire Addendum issued as forming part of the contract.
- (i) The Letter of Acceptance issued by the purchaser.

2. PURPOSE OF LTA:

2.1 The Purchaser hereby covenants to pay the Supplier in consideration of the provision of the goods, the Contract Price at the times and in the manner prescribed by this Agreement.

2.2 Brief particulars of the Products or goods which shall be supplied / provided by the Supplier are as under.

Sch. No.	Items Description	Quantity	Unit	Ex-Works Price per Unit (Rs)	GST (%)	GST (Rs)	Transport & any other charges (Rs)	Rate Per Unit (Landed Price) (Rs)	Grand Total (Rs)
Grand Total									

2.3 The supplier agrees that his supplies are subject to terms and conditions details contained in LTA documents mentioned above. The supplier appreciates that the supplies

are meant for public health system in the country and hence will agree to supply the goods of good quality as per standards in a timely manner as specified as per tender terms and conditions. The supplier has already given its no deviation (clause-by-clause compliance) for the subject terms and conditions.

3 . Manufacturing License and Site

License and Site Address: As per Annexure A.

IN WITNESS where of the parties here to have caused this Agreement to be executed in accordance with their respective laws the day and year first above written.

Signed, Sealed and Delivered by the said..... (For the Purchaser)

in the presence of

Signature

Name

Address

Signed, Sealed and Delivered by the Said (For the Supplier)

in the presence of

Signature

Name

Address

This page is intentionally left blank

Annexure - A

Annexure A to LTA No:
Supplier: M/s

LIST OF MANUFACTURING LICENSES & SITE ADDRESSES					
Sr. No.	Item Code	Item Description	Manufacturing Site Address	Manufacturing License No.	Remarks
1					
2					
3					

This page is intentionally left blank

Annexure - XI**CENTRAL MEDICAL SERVICES SOCIETY**

**Ministry of Health & Family Welfare (Government of India),
2nd floor, VishwaYuvak Kendra, Pt. Uma Shankar Dikshit Marg, Chankaya Puri**

PURCHASE ORDER**PO No:** CMSS/PROC/2019-21/NACP/010/PO/.....**Dated:** _____**To,**

M/s _____

Address: _____

Attn: _____

Phone: _____

Email _____

Subject: Purchase Order for supply of ARV DRUGS (TABS/CAPS)**Ref :** Long Term Agreement No: CMSS/PROC/2019-21/NACP/010/LTA/.....**dated** _____**Dear Sir,**

Please supply following quantities for the items specified as per the technical specifications and terms & conditions of the Long Term Agreement referred above:

Sr.No.	Item Code	Item Description	Quantity Accepted by the Purchaser	Unit	ExWorks Price per Unit(Rs)	GST (%)	GST (Rs)	Transportation Charges (Rs)	Rate Per Unit (Landed Price)(Rs)	Total Value (Rs)	Destination
1											As per Annex-B
2											As per Annex-B
3											As per Annex-B

1. All the Terms & Conditions of the Agreement signed by you on acceptance of your tender are applicable.
2. Delivery Period: 60 Days from the date of this purchase order.
3. Manufacturing license as perAnnexure A and site address as per Annexure B.
4. Payment Terms: Within 75 days of supplies in respect of items requiring sterility tests and within 60 days of supplies for other items.

(Sh. S.A. Khan)
General Manager (Procurement)

Copy to :

1. General Manager (LSC), CMSS
2. General Manager (QA), CMSS
3. Asst. General Manager (Finance), CMSS
4. All Consignees (CMSS Warehouses) concerned.

Annexure - A

Annexure A to PO No:

Supplier: M/s

CONSIGNEE-LIST						
Sr. No.	Item Description	Consignee Location	Consignee Address	Quantity	UOM	Remarks
1						
2						
3						

This page is intentionally left blank

Annexure-B

Annexure B to PO No:

Supplier: M/s

LIST OF MANUFACTURING LICENSES & SITE ADDRESSES					
Sr. No.	Item Code	Item Description	Manufacturing Site Address	Manufacturing License No.	Remarks
1					
2					
3					

This page is intentionally left blank

Annexure -XII**MANDATE FORM**

01	Company Name	
02	Postal Address of the company with Telephone No., Fax No. and Mail ID.	
03	Name of the Managing Director / Director / Manager Mobile No. / Phone No. E-mail ID.	
04	Name and Designation of the authorized company official Mobile No. E-mail ID	

Date:
Place:

Company Seal

Signature
(Name of the person signing & designation)

Mandate Form contd..

01	Name of the Bank. Branch Name& address. Branch Code No. Branch Manager Mobile No. Branch Telephone no. Branch E-mail ID	
02	9 digit MICR code number of the bank and branch appearing on the MICR cheque issued by the bank.	
03	IFSC code of the Branch	
04	Type of Account (Current / Savings)	
010	Account Number (as appear in Cheque book)	

(in lieu of the bank certificate to be obtained , please **attach the original cancelled cheque** issued by your bank for verification of the above particulars).

I /We hereby declare that the particulars given above are correct and complete. If the transaction is delayed or not effected at all for reasons of incomplete or incorrect information, I would not hold M/s. Central Medical Services Society (CMSS) responsible. I have read the conditions of the tender/agreement entered and agree to discharge the responsibility expected of me / from the company as a tenderer /successful tenderer.

Date:
Place:

Company Seal

Signature
(Name of the person
signing& designation)

CERTIFIED THAT THE PARTICULARS FURNISHED ABOVE BY THE COMPANY ARE CORRECT AS PER OUR RECORDS.

Bank Seal with address.

Signature of the authorized
official of the bank.

Annexure-XIII**PACKET -2****PRICE -BID****CENTRAL MEDICAL SERVICES SOCIETY****NEW DELHI - 110021****TENDER FOR RATE AGREEMENT OF ANTI RETRO VIRAL DRUGS (TABS/CAPS)**

Schedule of price bid in the form of BOQ_XXXX.xls uploaded online.

(Below sheet is only for reference)

PRICE SCHEDULE

(This BOQ template must not be modified/replaced by the bidder and the same should be uploaded after filling the relevant columns, else the bidder is liable to be rejected for this tender. Bidders are allowed to enter the Bidder Name and Values only.)

NUMBER	TEXT	TEXT	NUMBER	TEXT	TEXT	NUMBER	TEXT	NUMBER	TEXT	NUMBER
Sl. No.	Name of the Item	Location	Quantity in Tender	Units	Quantity Offered	EX Works price per unit in Rs.	GST (In Rs.)	Transportation and any Other Charges in Rs. (Till Consignee Location) on ODP basis. All inclusive and firm & fixed	Total Unit Price With GST (In Rs.) (Col 7+ Col 8+Col 9)	
1	2	3	4	5	6	7	8	9	10	
101	ZLN (AI)	1. Annex-I	6,57,58,235	Tablet					₹ 0.0000	
102	Elavienz 600mg	2. Annex-I	2,41,53,537	Tablet					₹ 0.0000	
103	ZLN (PI)	3. Annex-I	86,80,076	Tablet					₹ 0.0000	
104	Nevapine 200mg	4. Annex-I	86,38,000	Tablet					₹ 0.0000	
105	Elavienz 200mg	5. Annex-I	3,27,43,200	Tablet					₹ 0.0000	
106	Syrup Zidovudine	6. Annex-I	7,079	Bottles					₹ 0.0000	

Note:

1. List of CMSS warehouses as **per Annex-IC**.
2. Details of weight, volume and dimensions of shipping cartons and intermediate cartons may be provided as an additional annex to this form.

This page is intentionally left blank

Annexure-XIV**Bank Guarantee for EMD (Format)**

[The Bank shall fill in this Bank Guarantee Form in accordance with the instructions indicated.]

[insert Bank's Name, and Address of Issuing Branch or Office]

Beneficiary: *[insert Name and Address of Purchaser]*

Date: _____

BID GUARANTEE No.: _____

We have been informed that *[insert name of the Tenderer]* (hereinafter called "the Tenderer ") has submitted to you its bid dated (hereinafter called "the Bid") for the execution of *[insert name of contract]* under Tender No.

Furthermore, we understand that, according to your conditions, bids must be supported by a EMD.

At the request of the Tenderer _____, we *[insert name of Bank]* hereby irrevocably undertake to pay you any sum or sums not exceeding in total an amount of *[insert amount in figures]* (*[insert amount in words]*) upon receipt by us of your first demand in writing accompanied by a written statement stating that the Tenderer is in breach of its obligation(s) under the bid conditions, because the Tenderer :

(a) has withdrawn its Bid during the period of bid validity specified by the Tenderer in the Form of Bid; or

(b) _____ having been notified of the acceptance of its Bid by the Purchaser during the period of bid validity, (i) fails or refuses to execute the Contract _____ Form, if required, or (ii) fails or refuses to furnish the security deposit, in accordance with the Instructions to Tenderers.

(c) does not accept the correction of the Bid Price

(d) This guarantee will expire: (a) if the Tenderer is the successful tenderer, upon our receipt _____ to copies _____ of the contracts signed by the Tenderer and the performance security issued to you upon the instruction of the Tenderer ; or (b) if the Tenderer is not the successful tenderer, upon the earlier of (i) our receipt of a copy _____ of your notification to the Tenderer of the name of the successful tenderer ; or (ii) Twenty Eight days after the expiration of the Tenderer's Bid.

Consequently, any _____ demand for payment under this guarantee must be received by us at the office on or before that date.

This guarantee is subject to the Uniform Rules for Demand Guarantees, ICC Publication No. 758.

[signature(s)]

This page is intentionally left blank

Annexure-XV**Security Bank Guarantee (Format)**

_____ *[insert: **Bank's Name, and Address of Issuing Branch or Office**]*

Beneficiary: _____ *[insert: **Name and Address of Purchaser**]*

Date: _____

PERFORMANCE GUARANTEE No.: _____

We have been informed that *[insert: **name of Supplier**]* (hereinafter called "the Supplier") has received a Letter of Acceptance No. *[insert: **reference number of the Letter of Acceptance**]* dated _____ for entering into a Rate Agreement with you, for the supply of *[insert: **description of goods**]*

Furthermore, we understand that, according to the conditions of the Tender, a performance guarantee is required post acceptance of letter of Acceptance.

At the request of the Supplier, we *[insert: **name of Bank**]* hereby irrevocably undertake to pay you any sum or sums not exceeding in total an amount of *[insert: **amount in figures**]* (____) *[insert: **amount in words**]*¹ upon receipt by us of your first demand in writing accompanied by a written statement stating that the Supplier is in breach of its obligation(s) under the Tender, without your needing to prove or to show grounds for your demand or the sum specified therein.

This guarantee shall expire no later than the ____ day of _____, 2____,² and any demand for payment under it must be received by us at this office on or before that date.

This guarantee is subject to the Uniform Rules for Demand Guarantees, ICC Publication No. 758, except that subparagraph (ii) of Sub-article 20(a) is hereby excluded.

[signature(s)]

The Guarantor shall insert an amount representing the percentage of the Price specified in the letter of Acceptance and denominated in the currency of the Contract.

Established in accordance with tender conditions taking into account any warranty obligations of the Supplier as per tender conditions The Purchaser should note that in the event of an extension of the time to perform the Contract, the Purchaser would need to request an extension of this guarantee from the Guarantor. Such request must be in writing and must be made prior to the expiration date established in the guarantee. In preparing this guarantee, the Purchaser might consider adding the following text to the form, at the end of the penultimate paragraph: "The Guarantor agrees to a one-time extension of this guarantee for a period not to exceed [six months] [one year], in response to the Purchaser's written request for such extension, such request to be presented to the Guarantor before the expiry of the guarantee."

This page is intentionally left blank

Annexure-XVI**Instructions for Online Bid Submission:**

The bidders are required to submit soft copies of their bids electronically on the CPP Portal, using valid Digital Signature Certificates. The instructions given below are meant to assist the bidders in registering on the CPP Portal, prepare their bids in accordance with the requirements and submitting their bids online on the CPP Portal.

More information useful for submitting online bids on the CPP Portal may be obtained at: <https://eprocure.gov.in/eprocure/app>.

REGISTRATION

- 1) Bidders are required to enroll on the e-Procurement module of the Central Public Procurement Portal (URL: <https://eprocure.gov.in/eprocure/app>) by clicking on the link “**Online bidder Enrollment**” on the CPP Portal which is free of charge.
- 2) As part of the enrolment process, the bidders will be required to choose a unique username and assign a password for their accounts.
- 3) Bidders are advised to register their valid email address and mobile numbers as part of the registration process. These would be used for any communication from the CPP Portal.
- 4) Upon enrolment, the bidders will be required to register their valid Digital Signature Certificate (Class II or Class III Certificates with signing key usage) issued by any Certifying Authority recognized by CCA India (e.g. Sify / n Code / eMudhra etc.), with their profile.
- 5) Only one valid DSC should be registered by a bidder. Please note that the bidders are responsible to ensure that they do not lend their DSC's to others which may lead to misuse.
- 6) Bidder then logs in to the site through the secured log-in by entering their user ID / password and the password of the DSC / e-Token.

SEARCHING FOR BID DOCUMENTS

- 1) There are various search options built in the CPP Portal, to facilitate bidders to search active bids by several parameters. These parameters could include Bid ID, Organization Name, Location, Date, Value, etc. There is also an option of advanced search for bids, wherein the bidders may combine a number of search parameters such as Organization Name, Form of Contract, Location, Date, Other keywords etc. to search for a bid published on the CPP Portal.
- 2) Once the bidders have selected the bids they are interested in, they may download the required documents / bid schedules. These bids can be moved to the respective ‘My Bids’ folder. This would enable the CPP Portal to intimate the bidders through SMS / e-mail in case there is any corrigendum issued to the bid document.

- 3) The bidder should make a note of the unique Bid ID assigned to each bid, in case they want to obtain any clarification / help from the Helpdesk.

PREPARATION OF BIDS

- 1) Bidder should take into account any corrigendum published on the bid document before submitting their bids.
- 2) Please go through the bid advertisement and the bid document carefully to understand the documents required to be submitted as part of the bid. Please note the number of covers in which the bid documents have to be submitted, the number of documents - including the names and content of each of the document that need to be submitted. Any deviations from these may lead to rejection of the bid.
- 3) Bidder, in advance, should get ready the bid documents to be submitted as indicated in the bid document / schedule and generally, they can be in PDF / XLS / RAR / DWF/JPG formats. Bid documents may be scanned with 100 dpi with black and white option which helps in reducing size of the scanned document.
- 4) To avoid the time and effort required in uploading the same set of standard documents which are required to be submitted as a part of every bid, a provision of uploading such standard documents (e.g. PAN card copy, annual reports, auditor certificates etc.) has been provided to the bidders. Bidders can use "My Space" or "Other Important Documents" area available to them to upload such documents. These documents may be directly submitted from the "My Space" area while submitting a bid, and need not be uploaded again and again. This will lead to a reduction in the time required for bid submission process.

SUBMISSION OF BIDS

- 1) Bidder should log into the site well in advance for bid submission so that they can upload the bid in time i.e. on or before the bid submission time. Bidder will be responsible for any delay due to other issues.
- 2) The bidder has to digitally sign and upload the required bid documents one by one as indicated in the bid document.
- 3) Bidder has to select the payment option as "offline" to pay the bid fee / EMD as applicable and enter details of the instrument.
- 4) Bidder should prepare the EMD as per the instructions specified in the bid document. The original should be posted/couriered/given in person to the concerned official, latest by the last date of bid submission or as specified in the bid documents. The details of the DD/any other accepted instrument, physically sent, should tally with the details available in the scanned copy and the data entered during bid submission time. Otherwise the uploaded bid will be rejected.
- 5) Bidders are requested to note that they should necessarily submit their financial bids in the format provided and no other format is acceptable. If the price bid has been given as a standard BoQ format with the bid document, then

the same is to be downloaded and to be filled by all the bidders. Bidders are required to download the BoQ file, open it and complete the white coloured (unprotected) cells with their respective financial quotes and other details (such as name of the bidder). No other cells should be changed. Once the details have been completed, the bidder should save it and submit it online, without changing the filename. If the BoQ file is found to be modified by the bidder, the bid will be rejected.

- 6) The server time (which is displayed on the bidders' dashboard) will be considered as the standard time for referencing the deadlines for submission of the bids by the bidders, opening of bids etc. The bidders should follow this time during bid submission.
- 7) All the documents being submitted by the bidders would be encrypted using PKI encryption techniques to ensure the secrecy of the data. The data entered cannot be viewed by unauthorized persons until the time of bid opening. The confidentiality of the bids is maintained using the secured Socket Layer 128 bit encryption technology. Data storage encryption of sensitive fields is done. Any bid document that is uploaded to the server is subjected to symmetric encryption using a system generated symmetric key. Further this key is subjected to asymmetric encryption using buyers/bid openers public keys. Overall, the uploaded bid documents become readable only after the bid opening by the authorized bid openers.
- 7) The uploaded bid documents become readable only after the bid opening by the authorized bid openers.
- 8) Upon the successful and timely submission of bids (ie after Clicking "Freeze Bid Submission" in the portal), the portal will give a successful bid submission message & a bid summary will be displayed with the bid no. and the date & time of submission of the bid with all other relevant details.
- 9) The bid summary has to be printed and kept as an acknowledgement of the submission of the bid. This acknowledgement may be used as an entry pass for any bid opening meetings.

ASSISTANCE TO BIDDERS

- 1) Any queries relating to the bid document and the terms and conditions contained therein should be addressed to the Bid Inviting Authority for a bid or the relevant contact person indicated in the bid.
- 2) Any queries relating to the process of online bid submission or queries relating to CPP Portal in general may be directed to the 24x7 CPP Portal Helpdesk Ph.:0120-4200462, 0120-4001002.Mobile : 91 8826246593

.....

This page is left intentionally blank

Annexure- XVII**No Deviation Certificate**

This is to certify that the product(s) quoted_____ by our firm, M/s. _____ is as per the given technical specifications in the tender document & there is no deviation in relation to any conditions/requirements specified in the tender document.

This page is intentionally left blank

Annexure-XVIII***Near Relative Certificate***

(In case of Proprietorship firm certificate will be given by the proprietor. For partnership firm certificate will be given by all the partners and in case of limited company by all the Directors of the company excluding Govt. of India/Financial Institutions nominees and independent non-official part time directors appointed by Govt. of India or the Governor of the state. Authorised signatory of bid may also sign this bid on behalf of the entire directors/ partners/ proprietor).

This is to certify that none of my/our Company Directors' near relative as defined below currently works in CMSS where I am/we are going to apply for the tender. I/We also agree to the condition that due to any breach of conditions by the company or firm or any other related person the bid submitted on behalf of the company or firm will be cancelled and bid security will be forfeited at any stage whenever it is noticed and CMSS will not pay any damage to the company or firm or the concerned person. The company or firm will also be debarred for further participation for the quoted item in CMSS for a period of one year.

The near relatives for this purpose are defined as:

(a) Members of a Hindu undivided family.

(b) They are husband and wife.

(c) The one is related to the other in the manner as father, mother, son(s) & son's wife (Daughter in law), daughter(s) and daughter's husband (son in law), brothers(s) and brother's wife, sister(s) and sister's husband (brother in law).

Signature/Signatures (with Stamp)